

CV 15 - 3247

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

FILED
CLERK

2015 JUN -4 AM 10:55

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JAH-SON PERRY,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE
CLINT MOODY (Shield # 3346) (Tax # 937738)
and POLICE OFFICERS JOHN DOE 1-6,

Defendants.
-----x

COMPLAINT

U.S. DISTRICT COURT
EASTERN DISTRICT
OF NEW YORK

JURY DEMAND

**MATSUMOTO, J.
GO, M.J.**

JAH-SON PERRY (hereinafter "plaintiff"), by his attorney(s) The Law Offices of Wale Mosaku, P.C., complaining of the defendants THE CITY OF NEW YORK, DETECTIVE CLINT MOODY (Shield # 3346) (Tax # 937738) and POLICE OFFICERS JOHN DOE 1-6 (hereinafter collectively referred to as "the defendants"), alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom, and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983 [and §1985], [and arising under the law and statutes of the State of New York].

JURISDICTION

2. The jurisdiction of this Court is invoked pursuant to 42 U.S.C. Section 1983, 28 U.S.C. Section 1343, 28 U.S.C. Section 1331, and under the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
3. As the deprivation of rights complained of herein occurred within the Eastern District of New York, venue is proper in this district pursuant to 28 U.S.C. §1391 (b) and (c).

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THE PARTIES

4. Plaintiff is a citizen of the United States, resident in Kings County, New York State. Plaintiff is a black male of full age.
5. At all times alleged herein, defendants DETECTIVE CLINT MOODY (Shield # 3346) (Tax # 937738) and POLICE OFFICERS JOHN DOE 1-6 (hereinafter collectively referred to as "defendant officers") are law enforcement officers employed by the Police Department of the City of New York ("NYPD").
6. At all times alleged herein, the defendant officers were acting under the color of their official capacity and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York.
7. At all relevant times, the defendant City of New York was and is a municipal corporation duly organized and existing under the laws of the State of New York, and was the employer of the defendant officers through its Police Department, namely the NYPD, and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
8. Plaintiff sues all defendants in their individual and official capacities.

FACTUAL ALLEGATIONS

9. On June 1, 2015, at approximately 03:00 p.m., within the premises described as 85 Decatur Street, Brooklyn, New York 11216 ("subject premises") the plaintiff was falsely arrested by defendant officers John Doe 1-6.
10. A few minutes prior to his arrest, the plaintiff was walking on Throop Avenue in the direction of Decatur Street, intending to visit his mother, who resides at the subject premises.
11. As the plaintiff was walking on Throop Avenue in the direction of Decatur Street, he observed an NYPD marked van, parked on Throop

Avenue, against the flow of traffic (Throop is a one way street), a few feet away from Fulton Street.

12. Within the NYPD van were Police Officers John Doe 1-2, one of whom was seated in the driver's seat, and the other in the front passenger's seat.
13. That as the plaintiff crossed Throop Street in front of said NYPD vehicle, he observed the officer who was seated in the passenger's seat of said vehicle tap the driver and gesture towards the plaintiff.
14. The plaintiff kept walking on Throop Avenue, and after walking a few feet, looked behind him towards the NYPD van, at which point he observed the officer who was seated in the driver's seat sticking his head out of the window of said vehicle, and staring at him.
15. That as the plaintiff kept walking towards Decatur Street, he observed the NYPD vehicle make a u-turn and drive towards him.
16. That the NYPD vehicle then drove up to the plaintiff, at which point Officers John Doe 1-2 continued to stare at the plaintiff as he was walking, without saying anything.
17. That the plaintiff then made a right turn on Decatur Street, and walked up to the subject premises, which is located approximately three houses from the corner of Throop Avenue.
18. That as the plaintiff entered into the front yard of the subject premises, he observed Police Officers John Doe 1-2 exit their vehicle and walk towards him.
19. That as the plaintiff was within the front yard of the subject premises waiting to gain entry into same, Police Officers John Doe 1-2 entered into said premises and demanded that he give them some form of identification.
20. That the plaintiff asked why said officers were asking for his identification, and in response, said officers continued to demand that the plaintiff give them some form of identification.

21. That Police Officers John Doe 1-2 subsequently informed the plaintiff that there was a "warrant" out for his arrest "in the system", and that he was wanted for "questioning".
22. That one of said officers then showed the plaintiff his phone, which contained a photograph of the plaintiff in the form of a "Wanted" poster, with the additional language "for assault".
23. That the plaintiff protested that he had not assaulted anyone, and inquired of Police Officers John Doe 1-2 what the "warrant" was for.
24. That subsequently Police Officers John Doe 3-6 showed up at the location in another NYPD van.
25. That Police Officers John Doe 1-6 informed the plaintiff that since there was a "warrant" for his arrest "in the system", they were going to arrest him, and that he would find out why the "warrant" was issued once he arrived at the precinct and was taken to the Detective who issued the "warrant".
26. At this juncture, the plaintiff's mother and teenage son had come out of the subject premises, and were observing the scene.
27. Neighbors of the plaintiff's mother were also observing the incident, as Police Officers John Doe 1-6 gathered around the plaintiff.
28. That at that juncture Police Officers John Doe 1-2 placed the plaintiff in handcuffs.
29. At the time he was placed in handcuffs, said handcuffs were secured excessively tightly to the plaintiff's wrists by Police Officers John Doe 1-2, causing bruising, substantial pain and eventual numbness.
30. That the plaintiff immediately requested that Police Officers John Doe 1-2 loosen said handcuffs, but they refused his entreaties.
31. That the plaintiff was taken to the 79th police precinct by Police Officers John Doe 1-2, and upon arrival, was taken to defendant Detective Clint Moody, who had issued the "warrant", and disseminated the "wanted" posters with the photograph of the plaintiff.

32. That in fact, defendant Detective Clint Moody had not obtained a warrant that was duly issued by a court of competent jurisdiction.
33. That what defendant Police Officers John Doe 1-2 had referred to as a "warrant" was in fact an "investigation card" ("I-card") that had been issued/activated by defendant Detective Clint Moody, and disseminated within the NYPD system.
34. That defendant Detective Clint Moody then interviewed the plaintiff in an "interrogation room".
35. That the plaintiff was led to believe that the interview was recorded.
36. That the defendant Detective Clint Moody proceeded to question the plaintiff about a shooting incident that he stated occurred at a "cook-out" during the early morning of Sunday May 30, 2015 (at approximately 03:00 a.m.), at the premises described as 14 Hart Street, Brooklyn, New York.
37. That the plaintiff recognized that address as the location that his estranged ex-girlfriend, namely Natasha Estava, resides at.
38. That the plaintiff protested his innocence, stating that he was not at that location that day, and that in fact he was at another "cook-out" that had taken place on 236 Hancock Street, Brooklyn, New York, and that there were numerous witness who could verify his alibi.
39. Additionally, the plaintiff asked Detective Moody to call Ms. Esteva, and that he was absolutely sure that she would verify that he did not attend her event on the night in question.
40. That the plaintiff subsequently provided Detective Moody with the telephone numbers of Ms. Esteva, as well as a couple of persons that he had socialized with at the Hancock Street event, who could verify his alibi.
41. That defendant Detective Clint Moody left the interrogation room, after informing the plaintiff that he would call the above-referenced persons.

42. That after some time, defendant Detective Clint Moody returned and stated to the plaintiff that his alibi had "checked out".
43. That at that juncture the plaintiff protested that he had been arrested in the presence of his mother, son and their neighbors for something he had absolutely nothing to do with.
44. That in response, defendant Detective Clint Moody stated to the plaintiff that he was not under arrest.
45. That when defendant Detective Clint Moody stated to the plaintiff that he was not under arrest, the plaintiff asked "so I can get up and leave?"
46. That shortly thereafter, defendant Detective Clint Moody released the plaintiff from his custody.
47. That as the plaintiff was leaving, defendant Detective Clint Moody instructed the plaintiff to go home and stay indoors for a while, so that the "warrant" could clear from "the system".
48. That the defendant Detective Clint Moody told the plaintiff that any cop who comes across the plaintiff while the "warrant" was "in the system" would arrest the plaintiff as Police Officers John Doe 1-6 had.

**CAUSE OF ACTION AGAINST EACH DEFENDANT OFFICER: FALSE ARREST
AND FALSE IMPRISONMENT UNDER 42 U.S.C § 1983**

49. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 48 of this complaint as though fully set forth herein.
50. That the defendant Detective Clint Moody's above-referenced unlawful action(s), including but not limited to the issuance and/or activation of the above-referenced I-card, was/were the direct and proximate cause of the arrest of the plaintiff by the defendants Police Officers John Doe 1-6 on June 1, 2015.
51. That the defendants Police Officers John Doe 1-6's actions in physically arresting the plaintiff on June 1, 2015, despite their

knowledge and awareness that no Court of competent jurisdiction had issued a warrant directing the arrest of the plaintiff, were unlawful and illegal.

52. The arrest, detention and imprisonment of plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.
53. As a result of plaintiff's false arrest and imprisonment, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been otherwise damaged.
54. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against the above-referenced defendant officers, individually and severally.

**CAUSE OF ACTION AGAINST DEFENDANT OFFICERS JOHN DOE 1-2:
EXCESSIVE FORCE UNDER 42 U.S.C § 1983**

55. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 54 of this complaint as though fully set forth herein.
56. The level of force employed by defendant officers John Doe 1-2 in the manner in handcuffing the plaintiff was unwarranted, objectively unreasonable, and in violation of the plaintiff's constitutional rights.
57. As a result of the aforementioned conduct of defendant officers John Doe 1-2, the plaintiff was subjected to excessive force resulting in physical injury, pain and suffering.
58. Plaintiff hereby demands compensatory damages and punitive damages in an amount to be determined at trial, against the defendant officers John Doe 1-2, individually and severally.

CAUSE OF ACTION AGAINST THE DEFENDANT CITY OF NEW YORK:
MUNICIPAL LIABILITY UNDER 42 U.S.C § 1983

59. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 58 of this complaint as though fully set forth herein.
60. The acts complained of were carried out by the defendant officers in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.
61. The defendant officers acted under color of law, in their official capacity, and their acts were performed pursuant to the customs, policies, usages, practices, procedures and rules of the City of New York and its police department.
62. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and its police department include, but are not limited to the following unconstitutional practice(s): wrongfully arresting innocent members of the public pursuant to the unlawful issuance of "I-Card(s)".
63. That an I-card was and is an illegal and unconstitutional departmental tool utilized by the NYPD, wherein an investigating detective, such as Clint Moody, who desires to question a member of the public, rather than seek an arrest warrant from a court of competent jurisdiction, prepares said I-card, and thereafter causes same to be dispersed and disseminated within the NYPD.
64. That the intent and practical effect of said I-card is to serve as a court issued arrest warrant.
65. That any member of the NYPD who becomes aware of said I-card (in this case, defendant Police Officers John Doe 1-6) was/were and is/are trained and instructed to seek, arrest and detain the subject of the I-card, and thereafter present the subject of the I-card to the detective who issued the I-card.

66. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York, constituted a deliberate indifference to the safety, well-being and constitutional rights of all defendants, including but not limited to the plaintiff; were the proximate cause of, and moving force behind, the constitutional violations suffered by the plaintiff as alleged herein, and deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States:

(a) The right of the plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States.

(b) The right of the plaintiff not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the laws, secured to him by the Fifth and Fourteenth Amendments to the Constitution of the United States.

67. The defendant officers were the actual agents of the defendant City of New York and were following the customs, practices, ordinances and/or regulations of the City of New York when they violated the plaintiff's constitutional and civil rights, and the City of New York is therefore responsible for their acts, and liable to the plaintiff for the damages he suffered.

68. The actual principal/agent relationship between defendant City and the defendant officers was created by the fact they were employees of defendant City, and the City had the right to, and it did indeed regulate and control the activities and conduct of the defendant officers.

WHEREFORE, plaintiff respectfully prays judgment as follows:

1. For compensatory damages against all defendants in an amount to be proven at trial;
2. For exemplary and punitive damages against all defendants in an amount to be proven at trial;

3. For costs of suit herein, including plaintiff's reasonable attorney's fees; and;
4. For such other and further relief as the court deems proper.

DEMAND FOR TRIAL BY JURY

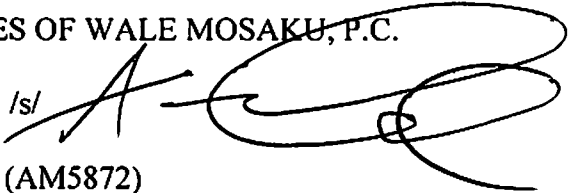
Pursuant to Rule 38 (b) of the Federal Rules of Civil Procedure, plaintiff demands a trial by jury.

Dated: Brooklyn, New York
June 3, 2015

LAW OFFICES OF WALE MOSAKU, P.C.

By:

/s/

A handwritten signature in black ink, appearing to be 'Wale Mosaku', written over a horizontal line.

Wale Mosaku (AM5872)
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